
BYOWNERHUB · FSBO

The Boston FSBO Seller's Toolkit

Every document, deadline, and negotiation move for selling your Massachusetts home without a listing agent — in one package.

- ✓ The complete 28-step seller's checklist, Boston edition
- ✓ All 8 Massachusetts transaction documents, in order, with costs
- ✓ Pricing worksheet — build your own CMA like an agent
- ✓ Offer comparison scorecard + appraisal-gap guide
- ✓ Copy-and-send negotiation email templates
- ✓ Massachusetts closing-cost planner

START HERE

How to Use This Toolkit

This toolkit walks the Boston FSBO sale in the order it actually happens. Work the checklist top to bottom; pull the matching document from the library as each phase begins. Two worksheets (pricing, offer comparison) and three email templates do the heavy lifting at the negotiation stage.

The three things that make Massachusetts different

An attorney is mandatory	Massachusetts requires an attorney to conduct the closing. Budget \$800–\$1,500. This is a feature for FSBO sellers — your attorney replaces most of what a listing agent does at contract stage.
The Offer to Purchase is BINDING	Unlike most states, the signed Offer to Purchase is an enforceable contract (McCarthy v. Tobin, 1999). Never sign one casually — have your attorney lined up before you list.
Smoke/CO certificate before closing	You must obtain a Certificate of Compliance from your local fire department (~\$50). Schedule the inspection 2–3 weeks before closing — failed inspections need a re-visit.

Your timeline at a glance

Phase	Typical duration	What happens
1 · Prepare	2–4 weeks	Pricing, pre-listing inspection, disclosures, declutter, photos
2 · List	2–3 days	Flat-fee MLS, listing copy, commission decision, lockbox
3 · Show	1–4 weeks	Open house, inquiries, offers arrive, negotiation
4 · Contract	1–2 weeks	Binding Offer to Purchase → Purchase & Sale (attorney)
5 · Close	4–6 weeks	Buyer inspection & financing, title, smoke cert, closing day

Best time to list in Boston: mid-March to mid-May is peak demand and strongest pricing. January–February has the least competition — winter buyers are motivated buyers. If listing in the July–August lull, price aggressively.

PART 1

The Master Checklist — Boston Edition

Twenty-eight steps in five phases, including the Massachusetts-only items most sellers miss. Check items off as you go; page references point to the document library where a form is needed.

Phase 1 · Prepare (2–4 weeks before listing)

- ☐ **Research your home's value — build a CMA**
Use the pricing worksheet on page 8. Price within 3% of market or you'll sit.
- ☐ **Order a pre-listing inspection (~\$400)**
Fix issues before buyers find them — prevents deal-killers at closing.
- ☐ **Choose your listing window**
Spring peak: mid-March–mid-May. Winter = less competition, serious buyers.
- ☐ **Complete required disclosures**
Lead paint (pre-1978, federal) + Seller's Statement of Condition. → Documents 1 & 4.
- ☐ **Book the smoke & CO inspection**
MA-only: Certificate of Compliance from your fire department, ~\$50. → Document 2.
- ☐ **Title 5 septic inspection if not on city sewer**
MA-only: \$400–\$700, valid 2 years. → Document 3.
- ☐ **Declutter: remove 30–40% of furniture**
De-personalize (photos, valuables) and clear every surface. Buyers buy space.
- ☐ **Boost curb appeal before photos**
Mow, edge, mulch, trim 1–2 weeks before the shoot — the exterior shot gets the click.
- ☐ **Hire a real estate photographer (\$200–\$400)**
Professional photos lift views ~118%. Non-negotiable. Virtual staging: \$25–\$30/photo.

Phase 2 · List

- ☐ **Choose a flat-fee MLS service**
Confirm MLS PIN coverage for your zip. Lists to MLS + Zillow within 48 hours.
- ☐ **Write the listing description (250–300 words)**
Lead with the best feature. Specific beats pretty: "hardwood throughout," "Navien tankless."
- ☐ **Set the buyer's-agent commission**
Offer 2–2.5% so agents show your home. Skipping this kills showings. (Negotiable later — see templates.)
- ☐ **Install a lockbox (\$30–\$50)**
Notify your condo management company first if applicable — unauthorized boxes get removed.
- ☐ **Post on Facebook Marketplace + Nextdoor**
Free exposure to unrepresented local buyers. Price, photos, contact info.

Phase 3 · Show & Negotiate

- ☐ **Respond to every inquiry within 2 hours**
Slow responses lose deals. Turn on instant MLS notifications.
- ☐ **Hold an open house the first weekend**
Saturday 12–3pm is peak. Have disclosure packets printed and ready.
- ☐ **Track your Zillow save-to-view ratio**
First 72 hours: 5%+ saves/views = strong. Under 2% = fix price or photos.
- ☐ **Understand each offer's structure**
Financing vs. cash vs. Use & Occupancy (\$100–\$200/day). See page 9 scorecard.
- ☐ **Negotiate from net proceeds, not price**
Contingencies, deposit size, close date, and appraisal-gap coverage matter as much as the number.

Phase 4 · Contract (attorney-led in MA)

- ☐ **Hire your real estate attorney NOW**
Required in MA (\$800–\$1,500). They review the binding Offer to Purchase before you sign.
- ☐ **Sign Offer to Purchase — carefully**
BINDING in Massachusetts. Standard: \$1,000 deposit at offer. → Document 5.
- ☐ **Execute the Purchase & Sale (MAR 503)**
The full contract, ~5% deposit at signing. Attorney customizes. → Document 6.

Phase 5 · Close (4–6 weeks)

- ☐ **Buyer's inspection & repair round**
Decide: fix vs. credit. Don't lose the deal over small items.
- ☐ **Order the 6(d) certificate (condos only)**
MGL c.183A §6(d). \$50–\$200, takes 2–4 weeks — request 30–45 days out. → Document 7.
- ☐ **Title search & clearance (2–3 weeks)**
Liens and open permits stall closings — surface them early.
- ☐ **Smoke/CO certificate in hand**
Schedule the fire-department visit 2–3 weeks before closing.
- ☐ **Final walkthrough, then closing day**
Deed records at the Registry of Deeds; wire usually lands same day. → Document 8.
- ☐ **After: taxes + next move**
Gains above \$250K single / \$500K married may be taxable — ask your CPA. Get pre-approved before you close if buying next.

PART 2

The Massachusetts Document Library

The eight documents of a Boston FSBO sale, in transaction order. “Required” means legally required or lender-required for every applicable sale. Links are live in this PDF — click the source line.

1 Lead Paint Disclosure (Pre-1978 Homes)	REQUIRED	PREP
Federal requirement for every home built before 1978. The buyer must receive it before signing anything. Get it: HUD / EPA — official form <i>Applies nationwide; keep the signed copy forever.</i>		
2 Smoke & CO Detector Certificate of Compliance	REQUIRED	PREP
Massachusetts requires a compliance certificate from your local fire department before closing. Get it: Mass.gov — inspection prep guide <i>~\$50 fee to your fire department. Alarm placement rules changed in 2016 — read the prep guide.</i>		
3 Title 5 Septic Inspection & Addendum	IF APPLICABLE	PREP
Required for any property not on municipal sewer. Inspection valid 2 years; the addendum attaches to the P&S.; Get it: eForms — MA Title 5 addendum (PDF) <i>Inspection \$400–\$700. A failing system is negotiable: repair before closing or escrow holdback.</i>		
4 Seller's Statement of Property Condition	RECOMMENDED	LISTING
Not legally required in Massachusetts, but completing it honestly is your best protection against post-sale claims. Get it: eForms — MAR property disclosure (PDF) <i>Disclose what you know; never guess. “Unknown” is a legitimate answer.</i>		
5 Offer to Purchase Real Estate	REQUIRED	OFFER
BINDING in Massachusetts — unlike most states (McCarthy v. Tobin). Have your attorney review before signing. Get it: eForms — Greater Boston REB form (PDF) <i>Standard deposit at offer: \$1,000. Everything in it is enforceable.</i>		
6 Purchase & Sale Agreement — MAR Form 503	REQUIRED	CONTRACT
The full contract. Attorneys customize the standard form — this is the core of what your \$800–\$1,500 buys. Get it: eForms — MAR 503 (PDF) <i>Second deposit (typically to 5% total) due at P&S; signing.</i>		
7 6(d) Certificate — Condos Only	IF APPLICABLE	CLOSING
Proves condo fees are current (MGL c.183A §6d). The buyer's lender will not fund without it. Get it: Mass. General Laws c.183A <i>\$50–\$200 from the association; takes 2–4 weeks. Call the treasurer directly — faster than writing.</i>		
8 Deed (Quitclaim or Warranty)	REQUIRED	CLOSING
Transfers ownership. Your attorney prepares it and records it at the county Registry of Deeds. Get it: Mass. Land Records <i>Quitclaim is standard practice in Massachusetts despite the scary name.</i>		

PART 3

Pricing Worksheet — Build Your Own CMA

This is exactly what a listing agent does. Find 3–5 homes sold within 0.5 miles in the last 90 days with similar beds, baths, and square footage (Redfin and Zillow both show sold data free). Match on the basics, stay inside your zip code, then adjust ±5% for condition, upgrades, parking, outdoor space, and layout.

	Comp 1	Comp 2	Comp 3	Comp 4	Your home
Address					
Sold date					
Sold price					
Square feet					
Beds / baths					
Price per sq ft					
Condition vs. yours (±5%)					
Parking / outdoor space					
Adjusted \$/sq ft					

Your list price: average the adjusted \$/sq ft across comps, multiply by your square footage, then round to a search-friendly number (\$649,000 beats \$652,300 — it appears in “under \$650K” filters). Price within 3% of this figure. Overpricing costs more than it protects: listings that sit past 3 weeks in Boston get lowball offers anchored to days-on-market.

Neighborhood context: at data.census.gov, open the Mapping feature, search your zip, and overlay Census Tracts filtered by median household income and education — useful for judging which side of a zip-code line your pricing should lean toward.

PART 4

Offer Comparison Scorecard

Compare offers on net proceeds and risk of falling through — not headline price. Fill one column per offer. In Boston, offers come in three flavors: financed (mortgage contingency), cash (strongest), and financed with Use & Occupancy (buyer wants keys early, or you need to stay after closing at \$100–\$200/day).

	Offer A	Offer B	Offer C
Offer price			
Deposit at offer / at P&S;			
Financing (cash / conv. / FHA / VA)			
Down payment %			
Pre-approval attached?			
Inspection contingency?			
Appraisal contingency / gap coverage?			
Requested closing date			
Use & Occupancy terms			
Concessions requested			
Estimated NET to you			
Risk score (1–5)			

Reading buyer finances

Down payment: 20%+ down is a cleaner, lower-risk close (no PMI complicating their approval). **Appraisal gap:** if an above-asking offer appraises low, the lender finances only the appraised value — the buyer covers the difference in cash, renegotiates, or walks. An offer with a written *gap guarantee* is worth more than a higher offer without one. **Loan types:** conventional closes fastest; FHA/VA add minimum-property-condition repairs (chipped paint, handrails) and appraisal rules; cash skips all of it.

PART 5

Negotiation Email Templates

Copy, personalize the bracketed parts, send. Tone matters: firm, warm, and always leaving a door open.

Template 1 · Countering a low offer

Subject: Re: Offer on [address] – counter-offer

Hi [buyer/agent name],

Thank you for the offer on [address] – we appreciate the interest and your timeline works well for us.

We can't accept [\$X], though. Recent sales at [comp 1] and [comp 2] – both smaller/less updated – closed at [\$Y] and [\$Z], which is where the market has priced homes like ours. We're countering at [\$C], and we're glad to hold the [closing date / inspection terms] exactly as you proposed.

Happy to talk through the comps if useful. We'd like to make this work.

[Your name]

Template 2 · Multiple offers — calling for best & final

Subject: [address] – multiple offers received, best & final by [day, time]

Hi [buyer/agent name],

Quick update: we've received multiple offers on [address]. We're asking all parties for their best and final by [day at time].

For transparency, we're weighing more than price: deposit size, financing strength and down payment, appraisal-gap coverage, contingencies, and closing flexibility all count. If your buyer wants to strengthen terms rather than price alone, that can absolutely win.

We'll respond to everyone by [time + 24h].

[Your name]

Template 3 · Responding to inspection repair requests

Subject: Re: Inspection items at [address]

Hi [buyer/agent name],

Thanks for sending the inspection summary. We've reviewed each item:

- [Safety/structural item]: agreed – we'll have this professionally repaired before closing and share the receipt.
- [Mid-size item]: rather than coordinating work on your future home, we're offering a [\$X] credit at closing so you can choose your own contractor.
- [Cosmetic items]: these were visible at showing and reflected in our price, so we won't be addressing them.

This keeps us on schedule for [closing date]. If the credit route works, your attorney can fold it into the P&S; rider.

[Your name]

PART 6

Massachusetts Closing-Cost Planner

What selling FSBO in Boston actually costs — and what you're saving. Fill in the right column for your sale.

Item	Typical cost	Your number
Real estate attorney (required in MA)	\$800 – \$1,500	
MA deed excise (transfer) tax	\$4.56 per \$1,000 of price	
Smoke & CO certificate	~\$50	
Title 5 septic inspection (if applicable)	\$400 – \$700	
6(d) certificate (condos)	\$50 – \$200	
Flat-fee MLS listing	\$95 – \$400	
Professional photography	\$200 – \$400	
Pre-listing inspection	~\$400	
Buyer's-agent commission (your choice)	0% – 2.5%	
Moving	\$1,000 – \$5,000+	
TOTAL		

The comparison that matters: a traditional 5% listing arrangement on a \$750,000 Boston sale is \$37,500 in commission. Everything in the table above — attorney, certificates, MLS, photos, even offering a full 2.5% to the buyer's agent — typically totals \$22,000–\$24,000 on the same sale. Selling by owner with this toolkit keeps roughly \$14,000–\$16,000 of your equity, and skipping the buyer's-agent commission where the buyer is unrepresented keeps all \$37,500.

SUPPORT

Questions, Updates & the Fine Print

Included with your toolkit

- **Free updates:** Massachusetts forms and rules change. Re-download the current edition anytime from your unlock link at fsbo.byownerhub.com.
- **Email support:** stuck on a step? Write to byownerhubadmin@gmail.com — we answer within one business day.
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